Standing Associate Agreement

DRAFT - not legal advice; review before signing

Date ____ / ____ / 2026

JCE JCE Infrastructure Pty Ltd, ABN 29 699 165 663, of 756 Quia Road, Gunnedah NSW 2380 (JCE)

Associate Sunny Lotay, trading as / of Lotay Civil, ABN [TBC], Ballarat VIC (the Associate)

1. Role

The Associate provides technical review and certification services to JCE on JCE commissions, acting as an RPEQ and NER registered engineer (and RPE Vic where held). Certification is given only for work the Associate has reviewed and is satisfied with, within the Associate's registered areas of competence.

2. Engagement per project

Each engagement is made by a written work order from JCE setting out the project, scope, deliverables, program, hours or fee cap, and any client terms that flow down. No work is payable without a work order. JCE may name the Associate in tenders before a work order is issued, under clause 8.

3. Fees

Hourly rate: $[TBC] per hour excluding GST (default $200 per hour if no rate is agreed). Travel and disbursements only as stated in the work order. The Associate invoices JCE monthly; JCE pays within 30 days of a valid tax invoice, or on the client's payment terms where the work order says so.

4. Availability

The Associate will tell JCE promptly of any period when the Associate is not available, and will use reasonable efforts to meet work order programs. Either party may decline a work order.

5. Independence

The Associate is an independent contractor, not an employee, director, shareholder or partner of JCE. The Associate keeps professional independence in review and certification and may decline to certify. The Associate will declare any conflict of interest before accepting a work order.

6. Professional indemnity and insurance

Each party holds and maintains its own professional indemnity insurance (and public liability insurance) at levels agreed in each work order, and for any run-off period a client contract requires. The parties exchange certificates of currency before the first work order and on renewal.

7. Confidentiality

Each party keeps the other's and the client's confidential information confidential and uses it only for the work order. This survives termination.

8. Consent to be named in tenders

The Associate consents to JCE naming the Associate (name, registrations, CV, experience and rate) in tenders listed in writing (including by email) from time to time. JCE will not commit the Associate to a role or hours beyond what the Associate has agreed.

9. Term and termination

This agreement starts on the date above and continues until ended by either party giving 30 days' written notice. Work orders already issued continue to completion unless both parties agree otherwise.

10. General

This agreement is governed by the laws of New South Wales. Changes must be in writing and signed by both parties. Work order terms prevail over this agreement for that project.

Schedule 1: Work order (template, one per project)

Work order no. and date	
Project and client	

Scope of review and certification, deliverables

Hours / fee cap		Hourly rate	$200 [TBC]
Program / key dates			
Insurance levels for this project			

Client terms that flow down (if any)

Signed

For JCE Infrastructure Pty Ltd

Name	Jayden Callen	Position	Director
Signature		Date	

For Lotay Civil (the Associate)

Name	Sunny Lotay	Position	
Signature		Date	

Agreed hourly rate (excl. GST)	$200 [TBC]